

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

X

VICTOR MENDENG

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE SHELDON C.
FRANKLYN, SHIELD NO.2187
IN HIS INDIVIDUAL AND
OFFICIAL CAPACITY.

Defendants,

SUMMONS

Index No.

Date Index Number Purchased
02/08/2023

Plaintiff Designates Queens County
as the Place for Trial Pursuant to
C.P.L.R. Section 503

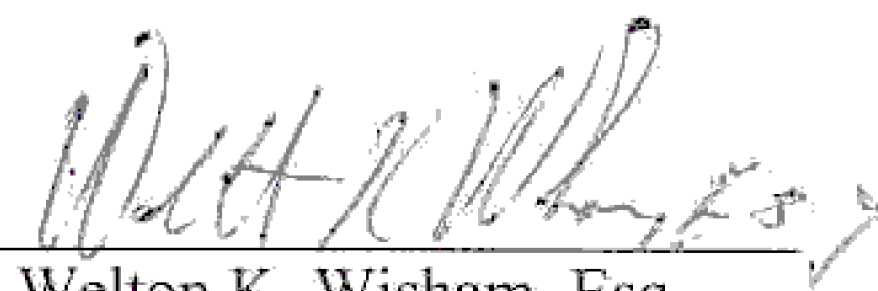
X

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: February 8, 2023

Bronx, New York

By



Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office
718-678-8062 Fax

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENSX

VICTOR MENDENG

Plaintiff,

- against -

ECF
COMPLAINT
Index No.CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE SHELDON C.
FRANKLYN, SHIELD NO.2187
IN HIS INDIVIDUAL AND
OFFICIAL CAPACITY.

Jury Trial Demanded

Defendants,

X

Plaintiff, **Victor Mendeng**, by his attorney, Welton K. Wisham, Esq, of The Law office of Welton K. Wisham, alleges upon information and belief, the following against Defendants, The City of New York, the New York City Police Department, and Police Officer Detective Sheldon C. Franklyn, who is believed to be assigned to the Queens Robbery Squad located at 3705 Union St. Flushing, New York.

PRELIMINARY STATEMENT

1. On April 26, 2022, Mr. Mendeng appeared at 82 Lincoln Ave, Bronx New York to meet with his parole officer.
2. Plaintiff was accompanied by his fiancé Carmen Campos who drove Plaintiff to the above location.
3. Mr. Mendeng was informed that his assigned paroled officer was not in the office and that Plaintiff would be seen by officer Davis.
4. Ms. Davis was having difficulty logging onto her computer to located Mr. Mendeng's files and told Plaintiff to wait in the waiting area as she sought assistance.

5. Approximately ten minutes later Ms. Davis ordered Mr. Mendeng to follow her to another room whereby Plaintiff was met by several New York City Police officers.

6. The officers ordered Mr. Mendeng to place his hands behind his back while the officers proceeded to place handcuffs around Plaintiff's hands.

7. Mr. Mendeng immediately protested and asked the officers why he was being arrested.

8. The officers ignored Mr. Mendeng's pleas and placed Plaintiff into a patrol vehicle whereby Plaintiff was driven to the 103rd police precinct in Queens New York by the Warrant Squad.

9. Detective Franklyn arrested Mr. Mendeng and deprived Plaintiff of his liberty for approximately fourteen hours without being told the reasons for his arrest.

10. Approximately fourteen hours later, the Queens Assistant District Attorney approached Mr. Mendeng who was inside a holding cell that Plaintiff was free to leave.

11. The Assistant District Attorney told Mr. Mendeng that "we're sorry and that you are free to leave."

12. Detective Franklyn, without probable cause, arrested Plaintiff Mendeng for Robbery in the Second Degree, pursuant to Penal law section 160.10.

13. The Queens County District Attorney's Office dismissed Plaintiff case prior to arraignment confirming the lack of probable cause to support Plaintiff's arrest.

14. Plaintiff brings this action pursuant to 42 U.S.C. Section 1983, and under Section 1988 and pursuant to New York State law against the individual police officers for False Arrest, False Imprisonment, and violation of Plaintiffs' right arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

15. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and causing injury to the Plaintiff within the State of New York..

16. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action pursuant to 42 U. S. C. Section 1983.

VENUE

17. Plaintiff selects Queens County as the venue for which this action is commence. Venue is predicated on CPLR Section 503.

PARTIES

18. Plaintiff Victor Mendeng is a citizen of the United States and is a resident of the State of New York Queens, County.

19. Defendant, Detective Sheldon C. Franklyn, is a duly appointed New York City Police Officer who at the time of this incident was assigned to the Queens Robbery Squad located at 3705 Union St. Flushing, New York.

20. Officer Franklyn acted within the scope of his employment and under color of law as a New York City police officer on the date of the incident complained of herein.

21. That officer Franklyn was at all times mentioned in this Complaint acting on behalf of the City of New York, and the New York City Police Department as an agent, servant, and employee, acting within the scope of his employment by Defendant, City of New York.

22. That officer Franklyn, being a duly appointed police officer in the New York City Police Department, acted under color of law, that is under color of law of the Constitution of the United

States and statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

23. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

24. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant police officers.

JURY DEMAND

25. Plaintiff demands trial by jury.

NOTICE OF CLAIM

26. On or about July 12, 2022, Plaintiff, in furtherance of his New York State causes of action, filed a timely Notice of Claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officer, Detective Sheldon C. Franklyn, in compliance with General Municipal Law Section 50-h.

27. On August 3, 2022, the Comptroller of the City of New York acknowledge receipt of Mr. Mendeng's timely filed Notice of Claim by assigning Claim Number 2022PI021871.

28. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

29. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

30. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

31. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

32. That by reason of the foregoing, Plaintiff, Victor Mendeng has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

33. On or about April 26, 2022, at approximately 10:00 am, Mr. Mendeng had an appointment with his parole officer James whose office was located at 82 Lincoln Ave. Bronx, New York. Mr. Mendeng was driven to the parole office by his fiancé Carmen Campos.

34. Upon his arrival, Plaintiff was informed that his parole officer Ms. James was not in the office and that he would be seen by officer Davis.

35. Ms. Davis met with Mr. Mendeng and proceeded to retrieve Plaintiff's parole information store on her computer.

36. Ms. Davis had difficulty retrieving Plaintiff's parole files on her computer and instructed Mr. Mendeng to wait in the waiting area as she sought assistance in logging onto her computer.

37. Approximately ten minutes later Ms. Davis reappeared and told Mr. Mendeng to follow her into another area where Plaintiff was met by several parole and police officers.

38. The officers ordered Mr. Mendeng to put his hands behind his back as the officers handcuffed Plaintiff's hands behind his back.

39. Mr. Mendeng repeatedly asked the officers why he was being arrested.

40. The officers refused to inform Mr. Mendeng the reasons for Plaintiff's arrest.

41. Soon thereafter a warrant squad arrived at the Bronx parole office and drove Mr. Mendeng to the 103rd police precinct in Queens, New York, where Plaintiff was placed in a holding cell unaware of the charges against him.

42. Upon arriving at the 103rd precinct the desk sergeant told the officers that he did not want Mr. Mendeng in his precinct for some unknown reason.

43. The desk informed the officers to take Mr. Mendeng to the 109th police precinct, also located in Queens New York.

44. The officers informed Ms. Campos that Mr. Mendeng had committed a robbery and had left DNA.

45. Mr. Mendeng was taken to central booking in Queens, New York by Detective Sheldon Franklyn and other unidentified police officers.

46. Mr. Mendeng was held in the holding cell in central booking for approximately twelve (12) hours without knowing why he was arrested.

47. The Assistant District Attorney approached Mr. Mendeng inside the holding cell and informed Plaintiff that they “we’re sorry” and that Mr. Mendeng was free to leave because no charges were being filed against him.

48. Mr. Mendeng was released without arraignment and without appearing in front of a judge.

49. Mr. Mendeng was escorted out the back door of central bookings.

50. That officer Franklyn acted with malice and with deliberate disregard to Plaintiff’s constitutional right to be free from unreasonable search and seizure.

51.. That Detective Frankly abuse of his authority within the scope of his employment and under color of State law.

52. Detective Franklyn escorted Mr. Mendeng to the holding cell in handcuffs which were left on the Plaintiff for two hours.

53. Plaintiff suffered embarrassment, pain and humiliation due to the false arrest and detention.

54. Detective Franklyn informed Mr. Mendeng that he was arrested for and being charged with robbery.

55. Plaintiff was driven from the holding cell in the 109th precinct to Central Booking in Kew Gardens.

56. Plaintiff was held in Central Booking from approximately 10:am until 10:pm when he was informed by the assistant district attorney that "it was mistake, it's not you your being released."!

57. Mr. Mendeng was then released from central booking without. Plaintiff was not arraigned.

58. Plaintiff sought the assistance of a therapist to help him cope with the mental torment of being held in police custody knowing that he had not committed a crime.

59. Mr. Mendeng has difficulty sleeping and often awakes at night screaming forced to recall the events that led to this Complaint.

60. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Mendeng was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DETECTIVE SHELDON
C. FRANKLYN FOR FALSE ARREST AND FALSE IMPRISONMENT IN VIOLATION
OF THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED
STATES PURSUANT TO 42 U.S.C SECTION 1983.**

61. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 60", with the same force, and effect, as though more fully set forth at length herein.

62. Defendant, New York City Detective Sheldon C. Franklyn knowingly and willfully with deliberate indifference to Plaintiff's Constitutional rights, unreasonably initiated Plaintiff's arrest, and detention without probable cause to have reasonably believed that Mr. Mendeng had committed a crime.

63. Detective with the assistance of other officers and agents within the New York City Police Department acted with gross negligence in retrieving a warrant of some other, unknown person, who was wanted for committing a robbery in November of calendar year 2021.

64. The Defendants knew or should have known that they had arrested the wrong person and that Plaintiff Mendeng had not been involved in criminal activity.

65. Mr. Mendeng was knowingly and willfully deprived of his liberty caused by Defendant Frankly without probable cause.

66. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, and restrained Mr. Mendeng without legal justification.

67. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by officer Franklyn who acted under color of law and within the scope of his employment as a New York City Police officer .

68. That as a result of the false imprisonment of Plaintiff Victor Mendeng by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

69. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Mendeng was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

70. That in the manner described herein, the Defendants acted carelessly and recklessly with total disregard of the Plaintiff's constitutional rights.

71. That the Defendants knew, or should have known that their actions would or probably would inflict emotional distress upon the Plaintiff.

72. That at all times mentioned herein, Plaintiff was aware of and did not consent to his confinement.

73. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty and freedom.

74. That as a result of the false imprisonment, detention, and unreasonable search and seizure of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and depravation of his liberty and freedom secured under the Fourth Amendment to the Constitution of the United States without probable cause or legal justification.

75. That by reason of the foregoing Plaintiff Mendeng has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICER
SHELDON C. FRANKLYN PURSUANT TO 42 U. S. C SECTION 1983, FOR
VIOLATING PLAINTIFF'S RIGHTS UNDER THE DUE PROCESS CLAUSE OF
THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES**

76. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through 75", with the same force and effect as though more fully set forth at length here herein.

77. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

78. As direct and proximate result of the acts and omissions of the Defendant police officer Sheldon C. Franklyn, his supervisor and other members of the New York City Police Department, Victor Mendeng has been greatly humiliated, embarrassed, and injured, and has been caused to suffer extreme emotional pain, suffering, and mental anguish.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT SHELDON C.
FRANKLYN FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO
NEW YORK STATE LAW**

79. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 78", with the same force, and effect, as though more fully set forth at length herein.

80. Defendants initiated Plaintiff's imprisonment and detention without probable cause to have reasonably believed that Mr. Mendeng had been involved in any form of criminal activity.

81. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned, detained, humiliated and embarrassed Plaintiff, Victor Mendeng.

82. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, and restrained by the Defendants police officers who were acting under color of law and within the scope of their employment.

83. That Mr. Mendeng was not free to leave or move about due to his unlawful seizure by the Defendants, police officer, Sheldon C. Franklyn.

84. Mr. Mendeng was conscious of his confinement and did not consent to such confinement.

85. That as a direct and proximate result of the physical restraint of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom under the laws of the State of New York pursuant to Article 1 Section 12..

86. That the Plaintiff was intentionally confined without privilege or probable cause and that the Defendants could not have reasonably believed that Mr. Menden had committed a crime.

87. That the false imprisonment, detention, and restriction of Plaintiff's freedom constituted a malicious act, and was a wanton and reckless degradation of the plaintiff's liberty and freedom.

88. That by reason of the foregoing Plaintiff, has been damaged a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK FOR RESPONDEAT SUPERIOR.**

89. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "88" with the same force and effect as though more fully set forth at length herein.

90. That at all relevant times the Defendants acted under pretense of color of state law and the alleged underlying acts were without authority of law in abuse of governmental powers.

91. That the municipal Defendants City of New York, and the New York City Police Department hired, and supervised, Defendant, Sheldon C. Franklyn.

92. Officer Franklyn knowingly and willful falsely arrested, detained and confined Plaintiff without probable cause.

93. That the acts committed by the Defendant officer, Franklyn was conducted within the scope of officer Franklyn's employment as a New York City Police officer employed by the New York City Police Department, and under color of State law.

94. As a result, the City of New and the New York City Police Department are liable for the unlawful acts of police officer Sheldon C. Franklyn under the well-established doctrine of Respondeat Superior.

95. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Mendeng was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

WHEREFORE, Plaintiff Victor Mendeng hereby demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff against officer Sheldon C. Franklyn in an amount that would punish and deter Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

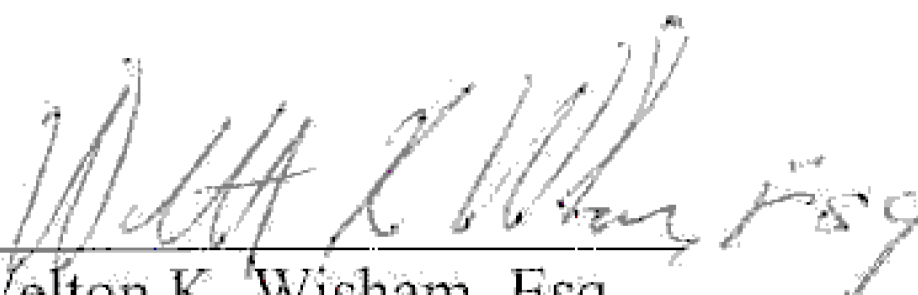
C. An award to Plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: February 8, 2023

Bronx, New York

By 
Welton K. Wisham, Esq.

The Law Office of Welton K. Wisham

1200 Waters Pl. Suite 105

Bronx, New York 10561

(718) 924- 3557 Office

(718) 678-8062 Fax

Attorney for the Plaintiff

Email: wkwisham@optonline.net

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

X

VICTOR MENDENG

AFFIRMATION

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE SHELDON C.
FRANKLYN, SHIELD NO.2187
IN HIS INDIVIDUAL AND
OFFICIAL CAPACITY.

Defendants,

X

I, Welton K. Wisham, Esq. attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under penalties of perjury: that,

I have read the annexed Summons and Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information in my files and with discussions with the Plaintiff, Victor Mendeng.

This Affirmation is made by me because the Plaintiff, Victor Mendeng does not presently reside in the County wherein I maintain my law office.

Dated: February 8, 2023
Bronx, New York

By 
Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York, 10461
718-924-3557 Office
wkwisham@optonline.net

File:
ECF